
vs Tarseem Singh & Ors on 14 March, 2024

Author: Jyotsna Rewal Dua

Bench: Jyotsna Rewal Dua

IN THE HIGH COURT OF HIMACHAL PRADESH AT SHIMLA RSA No.139 of 2016 Decided on:
14th March, 2024 .

Baljit Singh & Ors.Appellants Versus Tarseem Singh & Ors. ...Respondents

Coram Ms. Justice Jyotsna Rewal Dua 1 Whether approved for reporting?

For
the appellants:

r Mr. Prantap Sharma, Advocate vice Mr. Subhash Sharma, Advocate.

For the respondents: Mr. N. K. Thakur, Sr. Advocate with Mr. Divya Raj Singh, Advocate.

Jyotsna Rewal Dua, Judge Against the concurrent judgments and decrees passed by both the learned Courts below, defendant No.1 as substituted by his legal representatives, has instituted this Regular Second Appeal.

2. The case 2(i) A Civil Suit was instituted by Sh. Gurditta, Whether reporters of Local Papers may be allowed to see the judgment? yes predecessor-in-interest of respondent No.1-Tarsem Singh, for possession of land comprised in Khewat No.301, Khatauni .

No.585, Khasra Nos. 7 to 10, measuring 166-55 Sq. meters.

situated in Up Mohal Chhaba Nagar, Mohal Santokhgarh, Tehsil and District Una. The civil suit was instituted by Sh.

Gurditta against his children, both from his first as well as second marriage. During pendency of the civil suit, Sh.

Gurditta died and was substituted by his legal representative Sh. Tarsem Singh (respondent No.1). The substitution was on the basis of a Will, alleged to have been executed by Sh. Gurditta in favour of Sh. Tarsem Singh on 13.09.1999.

2(ii). In the original plaint, Sh. Gurditta had put forth a case that the parties were joint owners in possession of the suit land that had not been partitioned in accordance with law. Sh. Gurditta claimed himself to be the owner of $\frac{1}{2}$ share of the suit land. On his substitution as plaintiff, Sh. Tarseem Singh amended the plaint and claimed ownership over $\frac{4}{7}$ th share in the suit land. While asserting that, defendants were owner only of $\frac{3}{7}$ th share, the plaintiff pleaded that he did not want to remain in joint possession of suit land and desired to separate his share, therefore, the suit was filed.

2(iii). Defendants No.2 to 8 (respondents No.2 to 8) did .

not contest the plaintiff's claim. Only Sh. Piara Singh-

defendant No.1 (appellants) opposed the suit. The stand taken by him was that Sh. Gurditta had solemnized second marriage; Sh. Gurditta (father of the parties) owned $\frac{1}{2}$ share in the suit land: The other $\frac{1}{2}$ of the suit land was purchased by defendant No.1 and Sh. Gurditta in the name of Gurditta's second wife; Such purchase was made out of the funds of joint Hindu family; Sh.Gurditta shifted his family to Punjab alongwith his children from second marriage; Possession of the suit land was parted in favour of defendant No.1;

Defendant No.1 was in possession over the suit land for more than 25 years; He had raised construction over the suit land by spending huge amount. In addition to plea of relinquishment of share by Gurditta, defendant No.1, alternatively took the plea of having become owner of the suit land by way of adverse possession.

2(iv) Plaintiff- Tarseem Singh (legal representative of deceased plaintiff Sh. Gurditta), led evidence to prove the Will dated 13.09.1999, propounded to have been executed in his favour by Sh. Gurditta. Plaintiff produced six witnesses apart .

from examining himself. The appellant- defendant No.1 did not step in the witness box, but produced Sh. Baljit Singh and Sh. Harbhajan Singh as DW-1 and DW-2, respectively.

2(v). Leaned Trial Court vide its judgment and decree dated 31.03.2009, held that the plaintiff had failed to prove the due execution of Will dated 13.09.1999 (Ex.PW-2/A) in his favour. The plaintiff, therefore, was not held entitled to exclusively succeed to the share of Sh. Gurditta in the suit land.

Learned Trial Court also held that the parties were recorded as joint owners in possession of the suit land in the revenue record. Defendant No.1 had claimed himself to be the absolute owner in possession of the suit land on the ground of relinquishment of the suit land by his late father (Gurditta) in his favour. However, the evidence on record did not establish the plea taken by defendant No.1. It was also held that defendant No.1 could not prove having become owner of the suit land by way of adverse possession. The Court, further observed that even though DW-2 had stated about possession of defendant No.1 over the suit land, but .

did not specify the capacity in which defendant No.1 was said to be in possession. The Court held that co-owner in exclusive possession of joint property, holds that property for and on behalf of all the co-owners unless a clear and unequivocal assertion of hostile animus causing ouster of r to other co-owners, is demonstrated on record. After discussion of evidence adduced by the parties, learned Trial Court concluded that there was no evidence on record to show that defendant No.1 entered in exclusive possession of the suit land or that he ever asserted any hostile animus over the same against the co-owners. Simply because defendant No.1 had alleged raising construction over the suit land, his possession cannot be termed to be adverse against the other co-owners.

On the basis of its findings, learned Trial Court held that the share of deceased plaintiff Sh.Gurditta would devolved upon all his legal heirs on the basis of natural succession, therefore, parties to the suit were held entitled to the following shares in the suit land:-

"(a) Sh. Tarsen Singh L.R. of the plaintiff =1/7share

(b) Defendants No.1 to 5 = 1/7 share each .

(c) Defendants No.6 to 8 =1/2 share each"

2(vi). Feeling aggrieved against the findings returned by learned Trial Court on the point that Sh. Gurditta had not executed legal and valid Will in favour of Sh. Tarsem Singh (plaintiff), Civil Appeal No.37/2009 was instituted by Tarsem Singh before the learned First Appellate Court. Defendant No.1 (Piara Singh) also filed Civil Appeal No.25/2009 against the judgment and decree passed by learned Trial Court to the extent his claim of exclusive ownership over the suit land was rejected. Both the appeals (Civil Appeal No.25/2009 and Cross Objection Appeal No.37/2009) were dismissed on 28.12.2011. Learned First Appellate Court in its judgment and decree affirmed the findings of the learned Trial Court. Feeling aggrieved, defendant No.1 has instituted the instant Regular Second Appeal.

3. This appeal was admitted on 04.08.2016, on the following substantial questions of law:-

"1. Whether the findings of the learned Court below are perverse as the learned Court below has not taken into consideration the law?

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2. Whether the learned Court below has failed to apply the law for brining on record the legal representatives as enshrined in Order 22 rule 2 CPC, correctly?"

4. I have heard learned counsel for the appellant and learned Senior Counsel for the respondents on the above substantial questions of law.

4(a) Substantial question of law No.1

4(a)(i) Plaintiff's (Tarsem Singh) claim of there being a

validly executed Will in his favour by Sh. Gurditta (father of the parties) has been turned down by both the learned Courts below. This part of the judgment and decree has attained finality. Sh. Tarseem Singh has not assailed the findings returned against him in this regard by both the Courts below.

4(a)(ii) Appellant (Piara Singh) had claimed exclusive ownership over the suit land on the grounds that Sh.

Gurditta had relinquished his rights over the suit land in his favour and that he was in exclusive possession over the suit land for about 25 years prior to filing of the suit.

Alternatively, plea of his having become owner of the suit land by way of adverse possession was also raised.

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4(a)(iii) The record shows that Piara Singh did not appear in the witness box to affirm the averments made by him in the written statement. He did not offer himself for cross-

examination on the facts asserted by him. Learned Trial Court has made a specific mention in its judgment that at the time of recording the oral evidence, defendant No.1 (Piara Singh) was present in the Court on 28.08.2008, but he kept himself away from the witness box. Having not entered into the witness-box and having not presented himself for cross-

examination, an adverse presumption has to be drawn against him on the basis of principles contained in Illustration (g) of Section 114 of the Evidence Act. [Refer:-

(1999)3 SCC 457 (Ishwar Bhai C. Patel alias Bachu Bhai Patel vs. Harihar Behera and another)]. Hence, adverse inference was correctly drawn against him by the learned Courts below.

4(a)(iv) The appellant could not prove his alleged exclusive possession over the joint property. The jamabandi for the year 1995-96, recorded the suit land to be in the joint ownership and possession of all the co-owners. In the given .

facts, observations of learned Trial Court that even a co-

owner in exclusive possession of the joint property is a constructive trustee and holds said property for and on behalf of all the co-owners, are in order. No evidence was adduced by the appellant to prove relinquishment of suit r to property by Gurditta in his favour.

4(a)(v) The appellant failed to prove that he was in exclusive possession of the suit land or that his

such possession was hostile to the knowledge of the other co-

owners. The concurrent judgments and decrees recorded by both the learned Courts below are based upon correct appreciation of facts and law. Both the learned Courts below have not only held against the plaintiff inasmuch as the Will put forth by him was held to be not proved in accordance with law but both the learned Courts below, have also held that the appellant-defendant No.1 has also not been able to prove his exclusive possession over the suit land/ relinquishment of the suit land in his favour by his father Sh.

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Gurditta and his having become owner of the suit land by way of adverse possession. These factual findings returned .

by both the learned Courts below do not call for any interference. Accordingly, substantial question of law No.1 is answered against the appellant.

4(b) Substantial question of law No.2.

4(b)(i) Sh. Gurditta, the original plaintiff had died on 03.10.2000. Sh. Tarsem Singh son of Sh. Gurditta from latter's second marriage was substituted as Sh. Gurditta's legal representative and brought on record as plaintiff vide order passed by learned Trial Court on 22.02.2002. This was on the basis of a Will of Sh. Gurditta, allegedly executed on 30.09.1999. The order was passed in the presence of learned counsel for the appellant. Sh. Tarsem Singh, thereafter, moved an application for amendment of the plaint, which was allowed by learned Trial Court on 15.11.2004. Both the orders were accepted by the appellant. No appeal was instituted by the appellant against the aforesaid orders. No such ground with respect to improper impleading of legal representatives of Gurditta was ever raised by the appellant

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before learned Trial Court. No such issue was framed by learned Trial Court. The appellant did not raise this ground .

even in the first appeal preferred by him. Having accepted the impleadment of Sh. Tarsem Singh as legal representative of Sh. Gurditta in both the learned Courts below, the appellant cannot be permitted to raise this new factual ground and to build the same in the Regular Second Appeal.

4(b)(ii).

It may also be noticed here that in view of concurrent judgments and decrees passed by both the Courts below, this ground even otherwise does not survive as Sh.

Tarsem Singh (respondent No.1-plaintiff) has not succeeded in his suit on the basis of Will alleged to have been executed in his favour by Sh. Gurditta. Appellant Piara Lal (defendant No.1) has also not established and proved on record his exclusive/hostile possession over the suit land. All the parties, who are children of Sh. Gurditta have been held entitled to succeed to the suit land on the basis of intestate succession. Therefore, requirement of going into the substantial question of law No.2 does not even arise and is answered accordingly.

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5. For the foregoing reasons, there is no merit in the present appeal. The same is accordingly dismissed. Parties to .

bear their own costs.

The pending miscellaneous application(s), if any, also stand disposed of.

Jyotsna Rewal Dua

Judge

March 14, 2024

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